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[TENTATIVE] ORDER GRANTING PLAINTIFF'S MOTIONS TO COMPEL FURTHER RESPONSES TO SPECIAL INTERROGATORIES, SET ONE; FORM INTERROGATORIES, SET ONE; REQUEST FOR PRODUCTION, SET ONE AND DEEM REQUESTS FOR ADMISSION, SET ONE; AND GRANTING MONETARY SANCTIONS

I. INTRODUCTION

On December 18, 2025, Plaintiff Katherine Cheng ("Plaintiff") filed this action against Defendants Jauregui & Culver, Inc. and Matthew Joseph Jauregui ("Defendants") arising out of a motor vehicle collision that allegedly occurred on June 21, 2024. Plaintiff alleges Defendants' negligence caused her to suffer personal injuries.

On June 24, 2026, Plaintiff filed four motions to compel further responses to Form Interrogatories, Set One; Special Interrogatories, Set One; Requests for Admission, Set One; and Requests for Production of Documents, Set One. On July 14, 2026, Defendants filed an omnibus opposition to all four motions. No reply has been filed.

Meet and confer

Motions to compel further responses must always be accompanied by a meet-and confer-declaration (per Code Civ. Proc., § 2016.040) demonstrating a "reasonable and good faith attempt an informal resolution of each issue presented by the motion." (Id., §§ 2030.300(b), 2031.310(b)(2), 2033.290(b).)

Plaintiff contends she made reasonable meet and confer efforts before filing the instant motions. Plaintiff granted Defendant multiple extensions to respond to the subject discovery through May 29, 2026, continued corresponding regarding the outstanding responses, and attempted to resolve the dispute informally, including by requesting an Informal Discovery Conference. (Gkogka Decl., ¶¶ 3-11.)

Defendant contends Plaintiff failed to engage in a reasonable and good-faith meet and confer before filing the instant motions. (Opposition, pp. 2-6.)

The Court finds Plaintiff satisfied the meet and confer requirement. The record reflects Plaintiff made reasonable efforts to resolve the discovery dispute before seeking judicial intervention.

II. LEGAL STANDARD

A motion to compel a further response to interrogatories or production of documents must be noticed within 45 days of the service of the verified response, or any supplemental verified response, or on or before any specific later date to which the propounding party and the responding party have agreed in writing. (Cal. Code of Civ. Proc. §§ 2030.300(c), 2031.310(c); see also *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1409; *Vidal Sassoon, Inc. v. Superior Court* (1983) 147 Cal.App.3d 681, 685.) Otherwise, the propounding party waives any right to compel further responses. (Id.) The 45-day time limit is mandatory and jurisdictional. (*Sexton*, supra, 58 Cal. App. 4th at 1410.)

C.C.P. §2033.290 provides, in pertinent part, as follows:

(a) On receipt of a response to requests for admissions, the party requesting admissions may move for an order compelling a further response if that party deems that either or both of the following apply:

- (1) An answer to a particular request is evasive or incomplete.
- (2) An objection to a particular request is without merit or too general.

III. ANALYSIS

Plaintiff filed four motions to compel further responses to: (1) Form Interrogatories (FROGs), Set One; (2) Special Interrogatories (SPROGs), Set One; (3) Requests for Admission (RFA), Set One; and (4) Requests for Production of Documents (RFP), Set One. Because the motions arise from the same discovery history, involve the same parties, and present identical factual and legal issues, the Court addresses them together for the sake of judicial efficiency.

FROGS and SPROGS

Plaintiff moves to compel further responses to Form Interrogatories, Set One, and Special Interrogatories, Set One, arguing Defendant served only unverified, objection-only responses despite multiple extensions and repeated meet-and-confer efforts. Plaintiff contends the objections have therefore been waived and seeks verified, code-compliant responses without objections. (FROGs Motion, pp. 1-6; SPROGs Motion, pp. 1-6.)

Defendant opposes, arguing Plaintiff failed to engage in a reasonable and good-faith meet and confer before filing the motions. Defendant further contends any delay in serving substantive responses was substantially justified by defense counsel's unforeseen medical emergencies, including hospitalization for pneumonia and a bronchial infection, followed by a fractured rib that prevented counsel from working for much of May and June 2026. (Opposition, pp. 1-8.)

The Court understands that defense counsel experienced significant medical issues. However, despite receiving multiple extensions, from the original March 12, 2026, deadline through May 29, 2026, and Defendant has still not served verified, code-compliant responses. Because Defendant served only unverified responses consisting solely of objections, the responses are tantamount to no responses, and any objections have been waived. (Code Civ. Proc., § 2030.290.) Thus, the motions are GRANTED. Defendant shall serve verified, code-compliant responses, without objections, within 30 days.

RFA

Plaintiff moves to compel further responses to Requests for Admission, Set One, arguing Defendant served only unverified, objection-only responses despite multiple extensions and repeated meet-and-confer efforts. Plaintiff contends the objections have therefore been waived and seeks verified, code-compliant responses without objections. (Motion, pp. 2-6.)

As discussed above, Defendant opposes on the grounds that Plaintiff failed to adequately meet and confer before filing the motion and that any delay in serving substantive responses was substantially justified by defense counsel's medical conditions.

While the Court understands defense counsel's medical circumstances, Defendant has still not served verified, code-compliant responses despite receiving multiple extensions. Because Defendant served only unverified responses consisting solely of objections, the responses are tantamount to no responses, and any objections have been waived. (Code Civ. Proc., § 2033.280.) Thus, the motion is GRANTED. Defendant shall serve verified, code-compliant responses, without objections, within 30 days.

RFP

Plaintiff moves to compel further responses to Requests for Production of Documents, Set One, arguing Defendant served only unverified, objection-only responses despite multiple extensions and repeated meet-and-confer efforts. Plaintiff contends the objections have therefore been waived and seeks verified, code-compliant responses, without objections, together with production of all responsive documents. (Motion, pp. 2-6.)

As discussed above, Defendant opposes on the grounds that Plaintiff failed to adequately meet and confer before filing the motion and that any delay in serving substantive responses was substantially justified by defense counsel's medical conditions.

Again, the Court understands defense counsel's medical circumstances, Defendant has still not served verified, code-compliant responses despite receiving multiple extensions. Because Defendant served only unverified responses consisting solely of objections, Defendant has waived any objections to the requests. (Code Civ. Proc., § 2031.300.) Thus, the motion is GRANTED. Defendant shall serve verified, code-compliant responses, without objections, and produce all responsive documents within 30 days.

Sanctions

Plaintiff requests monetary sanctions in connection with each of the four motions. Code of Civil Procedure sections 2030.300, subdivision (d), 2031.310, subdivision (h), and 2033.290, subdivision (d), provide that the Court shall impose a monetary sanction against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel further responses, unless the Court finds the party acted with substantial justification or that other circumstances make the imposition of sanctions unjust.

The Court is sympathetic to defense counsel's medical circumstances. However, despite those circumstances, Defendant did not serve verified, code-compliant responses after receiving multiple extensions through May 29, 2026. Plaintiff therefore reasonably incurred attorney's fees and costs in bringing these motions. Thus, the Court finds monetary sanctions are warranted.

Here, although the Notices of Motion for the Form and Special Interrogatories motions request \$2,165.00, counsel's declaration supports a request of \$2,160.00 per motion. (Gkogka Decl., ¶ 12.) Based on counsel's declarations, Plaintiff requests a total of \$8,640.00 in monetary sanctions. Counsel declares she bills at \$600 per hour and spent 2 hours preparing each motion, anticipates 0.5 hour preparing a reply, and 1 hour preparing for and appearing at each hearing, in addition to the filing fee for each motion. (Gkogka Decl., ¶ 12.)

However, the Court finds the amount requested excessive. The four motions arise from the same discovery dispute, involve substantially identical factual and legal issues, and largely rely on the same motion papers. Although Plaintiff was required to file separate motions, much of counsel's work was duplicative.

Based on the foregoing, the Court reduces the requested sanctions and awards \$1,440.00, representing 2 hours of attorney time at \$600 per hour (\$1,200.00), plus filing fees of \$240.00 (\$60 × 4 motions), payable by Defendant and Defendant's counsel, jointly and severally, within 30 days of notice of this order.

VI. CONCLUSION AND ORDER

The Court GRANTS Plaintiff's motions to compel further SPROGS, FROGS, RFP and RFA. Defendant shall serve verified, code-compliant responses, without objections, and produce all responsive documents within 30 days of this order

The Court GRANTS request for monetary sanctions in the amount of \$1,440.00, to be paid jointly and severally by Defendant and Defendant's counsel within 30 days of this order.

Plaintiff is to give notice.

Dated: July 21, 2026

JARED D. MOSES

JUDGE OF THE SUPERIOR COURT